

		identifies the <i>PPM</i> case, the court’s electronic filing header shows it was actually filed in the <i>Huntington Landmark</i> case. These errors violate rule 3.350(a)(1) & (2). In addition, the attached proof of service does not include a service list. Therefore, there is no evidence the motion was served on all parties in both cases in violation of rule 3.350(a)(2).
5	25-01531711 <i>Nguyen vs. Toyota Motor Sales, U.S.A., INC.</i>	Demurrer to Complaint Defendant Toyota Motor Sales, U.S.A., Inc.’s Demurrer to the Complaint is CONTINUED to July 9, 2026 at 10:00 am in Department C33. A demurrer and motion to strike must be heard at the same time. (Cal. Rules of Court, rule 3.1322(b).) The concurrently filed Motion to Strike is set to be heard on July 9, 2026. Thus, the hearing on the demurrer is continued to the same date.
6	24-01437419 <i>Saeed vs. City of Newport Beach</i>	Motion for Leave to File Cross Complaint Defendant Environmental Construction, Inc.’s (“Environmental”) unopposed motion for leave to file a cross-complaint against Tot Lot Pros and ROES 1-50 is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc. §428.10, subd. (b).) “Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. (Code Civ. Proc., § 428.50(c).) The proposed cross-complaint asserts causes of action for indemnity, contribution, declaratory relief and breach of contract against Tot Lot Pros. The proposed cross-complaint is therefore permissive. The claims are related to the incident alleged by Plaintiff in his Complaint. Plaintiff alleges that on October 29, 2023, while he was walking on a playground ramp located within Grant Howald Part in the City of Newport Beach, he slipped and fell, allegedly due to accumulated leaves and loose sand from an adjacent sand pit. In connection with the Grant Howald Park